STANDARD OPERATING PROCEDURE	G-6220

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **03/11/25**	DATE REVIEWED 02/02/25
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CHAPTER TITLE GENERAL	RESOURCES
SUBJECT TASER	CROSS REFERENCE G-6100 USE OF FORCE G-6110 USE OF FORCE REPORTING REQUIREMENTS G-6400 CUSTODIAL DEATH PREVENTION G-7500 UNIVERSAL PRECAUTIONS/INFECTIOUS DISEASE CONTROL G-10200 EVIDENCE AND PROPERTY

I. Purpose:

The purpose of this policy is to establish the guidelines for issuing and deploying the Taser.

II. Policy:

The Taser is an electronic restraint device, specifically a handheld electronic immobilizing device used to subdue violent or dangerous subjects. The Taser is used as an intermediate weapon and is not intended to replace firearms or self-defense techniques. The Taser is authorized to control a subject exceeding verbal non-compliance. Deputies shall carry only the Taser 10 system. Armed Entry Security Officers shall carry the 26P. The force continuum lists the use of the Taser as an intermediate weapon.

III. Procedures:

Training: Only trained and certified deputies or Armed Entry Security Officers shall carry or utilize a Taser.

1. A certified instructor recognized by the manufacturer shall conduct training.

2. Certification shall be consistent with the recommendations of Axon.

3. Deputies shall review the TASER policy, the TASER annual user update, and product warnings annually. Deputies shall also review current TASER training bulletins annually or when directed by TASER Instructors or their designee.

B. **Issue and Carry:** Certified deputies may be assigned a Taser under the following guidelines:

1. Depending upon assignment, deputies may be issued a Taser at the beginning of a duty shift.

2. Those supervisors assigned to divisions/units where Tasers are approved for carry (e.g., road patrol, warrants, etc.) shall ensure that all available Tasers are assigned to certified deputies at the beginning of each shift. The identification number (e.g., R1, W1, etc.) for each assigned Taser shall be noted on the Roll Call form next to the assigned deputy. If a deputy attains a Taser after roll call (e.g., deputy has a late start), his or her supervisor shall ensure that the Roll Call form is updated to reflect the assigned Taser.

3. Assigned Tasers shall be returned at the end of the duty shift.

4. Each 26P Taser shall be equipped with one cartridge.

5. Each Taser 10 shall be equipped with a black magazine and 10 cartridges at the start of each shift. These cartridges shall stay with the Tasers unless expended or damaged. If a cartridge assigned to a Taser is expended or damaged, the responsible deputy shall notify a supervisor to replace the expended cartridge.

a) Division Supervisors will be provided 10 spare cartridges to replace spent cartridges. After replacing spent cartridges Supervisors shall request more cartridges from a TASER instructor to keep their stock at 10.

6. Deputies issued a Taser 10 shall ensure it is in proper working order prior to beginning a tour of duty by conducting a function test by holding the selector switch in the down position until the blue circle is complete. If there is a critical error the Taser 10 shall be taken out of service and returned to a Taser Instructor.

a) Any other errors refer to reference sheet located next to docking station.

7. Armed Entry Security Officers shall conduct a functions test using the following procedures for the X26P.

a) The deputies shall remove the cartridge from the Taser prior to any inspection or testing.

b) The Taser safety shall be turned to the “off” position.

c) The digital battery power display shall indicate a charge of at least 25%. If the display indicates less than 25% or an “E” then the Taser shall be returned to a Taser Instructor for service.

d) With the cartridge removed, and the taser pointed in a safe direction, the Taser shall be activated to ensure it is functioning.

e) If a Taser fails to function, it shall be returned to a Taser instructor for repair or replacement.

8. Carry: Deputies assigned a Taser for carry shall have the Taser available on their person.

a) Tasers shall be secured in an authorized hard-shell belt, thigh or vest holster. Holsters must be approved by a Taser instructor.

b) Tasers and cartridges shall be stored in a secure, clean, dry location when not worn.

c) It is recommended that Tasers should be holstered on the deputies and weak (support) side.

C. **Maintenance:** Only a certified Taser Instructor/Armorer shall modify or repair any Taser.

1. Taser 10 Batteries must be docked every thirty (30) days to allow firmware updates. Deputies issued a Taser 10 are responsible for insuring they are docked. A Taser instructor shall be responsible for docking the road patrol Tasers.

2. Tasers shall always be stored with a digital power magazine (X26P), or Taser 10 battery pack installed.

3. If a Taser is dropped, the deputy shall conduct a function test (see B-6 and 7 above). If the Taser is not functioning correctly, the deputy shall return the Taser to a Taser instructor.

4. If a Taser is submerged in water, the Taser shall be returned to a Taser instructor.

D. **Pre-Deployment Considerations:**

1. Prior to deploying a Taser, Deputies shall take into consideration the following:

a) Have all other lower levels of force been considered or exhausted.
b) The sex and age of the subject.
c) The ability of the subject to resist.
d) The number of subjects and officers present.
e) The suspect's actions.

2. Generally, Deputies should avoid deploying a Taser when the subject is:

a) Known to be pregnant.
b) Elderly or obviously infirm.
c) A young child.
d) In control of a motor vehicle.
e) Above ground level and in danger of falling or could be caught in machinery which could result in death or serious bodily injury.
f) Near flammable or combustible liquids or fumes.
g) In or near a pool, lake or similar body of water.

E. **Deployment:** The Taser shall be deployed in accordance with all Sheriff's Office training standards, policies and procedures. Tasers shall only be deployed when justified according to the use of force policy (see G-6100 Use of Force).

1. When tactically feasible, verbal commands shall be given prior to, during and after the deployment of a Taser.

2. The Taser may be used by a deputy in the following circumstances:

a) When a subject is being placed under lawful arrest and refuses to obey verbal commands and other levels of control have been or would be ineffective.

b) To apprehend a subject attempting to escape from lawful custody.

c) To control a violent restrained or handcuffed subject only when he or she is actively resisting or exhibiting active aggression, and/or to prevent the subject from harming himself or herself or others.

d) To restrain or control a subject engaged in or threatening active aggression (i.e., a physical assault).

e) To restrain or control a subject attempting to or threatening to injure himself or herself.

f) In lawful defense of the deputy or others.

g) To deter a vicious or aggressive animal that threatens the safety of the deputy, corrections officer or others.

3. When feasible, deputies deploying a Taser should attempt to have lethal force cover.

4. If tactically feasible, deputies prepared to deploy a Taser should notify other deputies on the scene "Taser Ready." This shall indicate a Taser may be deployed if needed.

5. If tactically feasible, a deputy deploying a taser shall announce "Taser, Taser, Taser." This shall indicate to other deputies on the scene that a Taser is being deployed.

6. The maximum range of the Taser 10 is forty-five (45) feet. The optimum distance for deployment of the 26P is seven (7) to fifteen (15) feet.

7. The Taser should never be fired at the eyes, face, neck or groin. The laser sight should not be intentionally aimed at a subject's eyes.

8. When deploying the Taser, the Deputies should allow the automatic five (5) second cycle to complete. (The cycle may be stopped by turning the safety to the "down" position). Additional cycles may be utilized if resistance continues. When the behavior that justified the use of the Taser ends, the deputy shall stop the use of the Taser.

9. Only the P26 Taser may be deployed as a "drive stun" weapon in cases where the probes have missed the subject or when deploying the P26 Taser in close quarters.

a) A "drive stun" is completed by aggressively driving a P26 Taser into the body as a stun-gun. If a "drive stun" is completed it shall be with an expended or live cartridge on the P26 Taser. Deputies shall not remove a cartridge to perform a drive stun, unless the cartridge is defective and the "drive stun" with it attached is ineffective.

b) A "drive stun" should be used as a backup application.

F. Post Deployment:

1. Any deputy deploying a Taser (including accidental discharges) shall immediately notify his or her supervisor. The supervisor shall respond to the scene.

2. The supervisor shall notify the on-duty watch commander or ADC.

3. A deputy authorized to use the Taser, in accordance with the manufacturer's guidelines and Sheriff's Office policy, may remove the Taser probes from a subject's skin in non-sensitive areas.

a) Only properly trained medical personnel shall remove probes embedded in sensitive tissue areas such as the head, neck, or groin.

b) Removal from other areas (e.g., female breast or buttocks areas) may be made at the discretion of the on-scene supervisor. If there is any question or concern regarding the removal of the probes, emergency medical service personnel shall be requested.

c) Once the subject is in custody, EMS personnel may be requested to examine the subject for injuries.

d) The subject should be monitored closely after the incident (see G-6400 Custodial Death Prevention).

4. The on-scene supervisor or deploying deputy shall photograph the subject and the probe impact areas (or drive stun location) as well as any secondary injuries resulting from the use of the Taser. If possible, photographs should be taken prior to removal of the probes.

5. If probes impact the head, neck or groin area, or a secondary injury requires hospitalization, the on-scene supervisor shall request the on-call investigator respond.

6. Following an operational deployment of a Taser, the Taser probes shall be collected and placed into evidence (see G-10200 Evidence and Property).

a) Deputies shall use universal precautions when handling Taser probes that have been removed from a subject (see G-7500 Universal Precautions/Infectious Disease Control).

b) Expended Taser 26P cartridges shall be re-inserted, point down, into the discharged cartridge and covered in red caution tape prior to being placed in an evidence bag.

c) Expended Taser 10 cartridges shall be placed into a sharps container before being placed into evidence.

7. Following an operational deployment of a Taser 10 Deputies shall dock the removable power magazine as soon as feasibly possible but no later than end of their duty shift.

8. Deputies may continue their shift without replacing spent cartridges as long as they have at least 5 remaining cartridges.

G. **Reporting:** With the exception of training, deputies shall document all uses of the Taser (including accidental discharges) in accordance with Sheriff's Office use of force reporting requirements (see G-6110 Use of Force Reporting Requirements).

1. On all operational deployments, the Use of Force Report form shall include:

a) A brief description of the incident.
b) The Taser serial number.
c) The cartridge serial number.
d) The number and duration of "activations" used on the subject.
e) The distance the deputy was from the subject.
f) Location the probes impacted.
g) Medical treatment, if any, provided to the subject.
h) A description of the subject's actions after being struck with the Taser.
i) A description of any injuries sustained by the subject including secondary injuries that may have occurred.

2. If the Taser is deployed on an animal, the deputy shall complete an information report containing all information required for a Use of Force Report form. All other evidence (e.g., taser cartridge and photographs) shall be collected and submitted.

3. Deputies accidentally discharging a Taser shall complete an information report containing all relevant information required for a Use of Force Report form.

4. Deputies shall notify a Taser instructor by memorandum of any use of a Taser. Deputies should attach a copy of the Use of Force Report, if appropriate.

5. Information from the Taser's data port shall be downloaded and printed by a Taser instructor and forwarded to the Professional Standards Commander to be included with the original Use of Force report. The Taser instructor shall also maintain a copy of the printout.